



Income Tax Department

Ministry of Finance, Government of India

Interpretation.

212. In sections 213 to 218,—

- (a) "foreign exchange asset" means any specified asset which the assessee has acquired or purchased with, or subscribed to in, convertible foreign exchange;
- (b) "investment income" means any income derived from a foreign exchange asset;
- (c) "long-term capital gains" means income chargeable under the head "Capital gains" relating to a capital asset, being a foreign exchange asset which is not a short-term capital asset;
- (d) "non-resident Indian" means an individual, who is not a resident and is—
 - (i) a citizen of India; or
 - (ii) a person of Indian origin;
- (e) "specified asset" means any of the following assets:—
 - (i) shares in an Indian company; or
 - (ii) debentures issued by an Indian company which is not a private company as defined in the Companies Act, 2013 (18 of 2013); or
 - (iii) deposits with an Indian company which is not a private company as defined in the Companies Act, 2013 (18 of 2013); or
 - (iv) any security of the Central Government as defined in section 2(f) of the Government Securities Act, 2006 (38 of 2006); or
 - (v) such other assets as the Central Government may specify in this behalf by notification.

